

CORRESPONDENCE · 4 FEB 2002

Untruths (3)

TYPE	DATE	PARTIES
Argument note	4 Feb 2002	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

"Untruths" note (3) — document in the Collorafi case file · 4 February 2002

Overview: Third note in the "Untruths" series: it sets against McDonald's assertions — that it helps its franchisees in difficulty, that it terminated so as to spare Mr Collorafi further losses — the findings of the judgment of 8 March 2000 and the recovery of the restaurants after the eviction.

Key points

The note points out that McDonald's asserts, in the out-of-court expert report written by SEPT and in its first-instance written submissions, that it "helps its franchisees in financial difficulty", and writes in its cassation brief that it terminated the agreements to "prevent Mr Collorafi from losing even more money". It sets two elements against this: on the one hand, according to the note, the judgment of 8 March 2000 found that Mr Collorafi had no chance of returning to profitability, even by reinvesting all his earnings; on the other hand, the year following the eviction, McDonald's allegedly presented a positive balance sheet for the three restaurant units, with management judged by the experts to be less good than that of Mr Collorafi.

Significance

A note of challenge subsequent to the appeal judgment: it seeks to establish the contradiction between McDonald's discourse on supporting franchisees and the economic reality observed after the restaurants were taken over.

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Source: bernardcollorafi.org/en/documents/note-untruths-3-collorafi-mcdonalds-franchisee-support-2002/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original document is authoritative.